

SENATE No. 803

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring access to executive physical exams.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 803

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 803) of Patrick M. O'Connor for legislation to ensure access to annual executive physical exams to any active or retired employee of the commonwealth insured under the group insurance commission. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring access to executive physical exams.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws, as appearing in the 2020 Official
2 Edition, is hereby amended by inserting after section 30 the following section:

3 Section 31. (a) Any coverage offered by the commission to any active or retired
4 employee of the commonwealth insured under the group insurance commission shall provide
5 coverage for the provision of an annual executive physical examination.

6 (b) Reimbursement provided under subsection (a) of this section for an annual executive
7 physical examination in an inpatient setting shall be provided separately from the existing
8 hospital payment for inpatient services.

9 SECTION 2. Chapter 118E of the General Laws, as appearing in the 2020 Official
10 Edition, is hereby amended by inserting after section 10N the following section:

11 Section 10O. (a) The division and its contracted health insurers, health plans, health
12 maintenance organizations, behavioral health management firms and third party administrators
13 under contract to a Medicaid managed care organization or primary care clinician plan shall
14 provide coverage for the provision of an annual executive physical examination.

15 (b) Reimbursement provided under subsection (a) of this section for an annual executive
16 physical examination in an inpatient setting shall be provided separately from the existing
17 hospital payment for inpatient services.

18 SECTION 3. Chapter 175 of the General Laws, as appearing in the 2020 Official Edition,
19 is hereby amended by inserting after section 47PP the following:

20 Section 47QQ. (a) An individual policy of accident and sickness insurance issued
21 pursuant to section 108 and sickness insurance issued pursuant to section 110 shall provide
22 benefits for residents of the Commonwealth and all group members having a principal place of
23 employment within the Commonwealth coverage for the provision of an annual executive
24 physical examination.

25 (b) Reimbursement provided under subsection (a) of this section for an annual executive
26 physical examination in an inpatient setting shall be provided separately from the existing
27 hospital payment for inpatient services.

28 SECTION 4. Chapter 176A of the General Laws, as appearing in the 2020 Official
29 Edition, is hereby amended by inserting after section 8QQ the following:

30 Section 8RR. (a) Any contract between a subscriber and the corporation under an
31 individual or group hospital service plan that is delivered, issued or renewed within or without

the Commonwealth shall provide to all individual subscribers and members within the Commonwealth and to all group members having a principal place of employment within the Commonwealth coverage for the provision an annual physical examination.

(b) Reimbursement provided under subsection (a) of this section for an annual executive physical examination in an inpatient setting shall be provided separately from the existing hospital payment for inpatient services.

SECTION 5. Chapter 176B of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by inserting after section 4QQ the following:

Section 4RR. (a) Any subscription certificate under an individual or group medical service agreement that is delivered, issued or renewed within or without the Commonwealth shall provide to all individual subscribers and members within the Commonwealth and to all group members having a principal place of employment within the Commonwealth coverage for the provision of an annual executive physical examination.

(b) Reimbursement provided under subsection (a) of this section for an annual executive physical examination in an inpatient setting shall be provided separately from the existing hospital payment for inpatient services.

SECTION 6. Chapter 176G of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by inserting after section 4GG the following:

Section 4HH: (a) Any individual or group health maintenance contract that is issued, renewed or delivered within or without the Commonwealth shall provide to residents of the

52 Commonwealth and to persons having a principal place of employment within the
53 Commonwealth coverage for the provision of an annual executive physical examination.

54 (b) Reimbursement provided under subsection (a) of this section for an annual executive
55 physical examination in an inpatient setting shall be provided separately from the existing
56 hospital payment for inpatient services.

57 SECTION 7. Sections 1 through 6 of this act shall apply to all policies, contracts and
58 certificates of health insurance subject to chapters 32A, chapter 118E, chapter 175, chapter
59 176A, chapter 176B, and chapter 176G which are delivered, issued or renewed on or after
60 September 1, 2026.